

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2015-008373

BETWEEN:

CROSSFIELD TRADING LTD

Appellant

- and -

NORTHERN COMMERCIAL BANK PLC

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent denies liability and contends that the products were appropriate, that adequate explanations were provided, and that the Appellant is a sophisticated investor who understood and accepted the risks.

B. RELEVANT FACTS

2. The Appellant was correctly classified as an elective professional client after completing appropriate documentation.
3. The product was suitable for the Appellant's stated hedging requirements.
4. The Appellant was provided with comprehensive product documentation including risk warnings.
5. The Appellant's directors confirmed in writing that they understood the product.
6. Break costs were clearly explained in the terms and conditions.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Financial Services and Markets Act 2000
 - Financial Services and Markets Act 2000 (Regulated Activities) Order 2001

D. SUBMISSIONS

8. The Appellant was correctly classified and treated as a professional client.
9. Appropriate advice and documentation was provided.
10. The product performed as explained and documented.

11. The claim is time-barred under the Limitation Act 1980.

E. AUTHORITIES

12. The following authorities are relied upon:

- Springwell Navigation Corp v JP Morgan Chase Bank [2010] EWCA Civ 1221
- Titan Steel Wheels Ltd v Royal Bank of Scotland Plc [2010] EWHC 211 (Comm)
- Barclays Bank Plc v Svizera Holdings BV [2014] EWHC 1020 (Comm)

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Dismiss the claim as time-barred
- Alternatively, dismiss on merits
- Costs

Sarah Clarke KC

Catherine Hughes

23 April 2022

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